

**BEFORE THE HON'BLE APPELLATE TRIBUNAL FOR ELECTRICITY
AT NEW DELHI
APPELLATE JURISDICTION**

I.A. NO. 1548 OF 2026

IN

APPEAL NO. 118 OF 2025

IN THE MATTER OF:

West Bengal State Electricity
Distribution Company Limited

...Appellant

Versus

West Bengal Electricity Regulatory Commission

...Respondent

AND IN THE MATTER OF:

Damodar Valley Corporation

...Applicant

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FILED BY



SKV LAW OFFICES

Advocates for the Applicant

B-50, Defence Colony, New Delhi-110024

Phone: 011-47099999

Email: lawyers@skvlawoffices.com

Place: New Delhi

Date: 21.08.2026

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**REJOINDER ON BEHALF OF THE APPLICANT/DAMODAR
VALLEY CORPORATION TO THE REPLY DATED 06.08.2026
FILED ON BEHALF OF THE APPELLANT/WBSEDCL TO THE
APPLICATION FOR IMPLEADMENT**

MOST RESPECTFULLY SHOWETH:

1. The present Rejoinder is filed on behalf of the Applicant, Damodar Valley Corporation ("**DVC**"), to the Reply dated 06.08.2026 (**Reply**) filed on behalf of West Bengal State Electricity Distribution Company Limited ("**WBSEDCL**") to DVC's Application dated 14.07.2026 (**Application**) seeking impleadment as a Respondent in the captioned Appeal. The Appeal has been filed by WBSEDCL against the Order dated 09.12.2024 ("**Impugned Order**") passed by the West Bengal Electricity Regulatory Commission ("**WBERC**") in Case Nos. FPPCA-120/23-24 and APR-117/23-24.

2. DVC denies each averment in the Reply that is inconsistent with the case set out in the Application and in this Rejoinder, as if the same were traversed *ad seriatim*. No omission to specifically deal with any averment of the Reply should be read as an admission of its correctness. The contents of the Application dated 14.07.2026 are reiterated and are not repeated here for the sake of brevity, save to the extent necessary to answer the specific submissions made in the Reply.

I. BRIEF RECAPITULATION OF UNDISPUTED FACTS

3. DVC and WBSEDCL are competing distribution licensees operating in the Damodar Valley command area in West Bengal, a multiple-licensee area. Pursuant to the public notice dated 31.01.2024 issued under Section 64 of the Electricity Act, 2003, DVC filed its objections before WBERC on 20.02.2024, within the stipulated time, and duly participated in the APR/FPPCA proceedings for FY 2022-23.
4. DVC's objections are recorded at Paragraphs 1.5, 2.1 and 2.3 of the Impugned Order. In substance, DVC's case before WBERC was that WBSEDCL was charging a lower tariff to certain consumer categories in the DVC command area, that this had caused DVC to lose consumers with substantial past dues, and that WBERC should examine whether any resultant loss was being passed on to WBSEDCL's other consumers.
5. WBERC returned a specific finding on this objection. At Paragraph 4.21.3 of the Impugned Order, WBERC examined WBSEDCL's billing methodology in the multiple-licensee area, and at Paragraph 4.21.3.4 held that this methodology passes the entire fixed-cost burden to WBSEDCL's other consumers. The resultant loss was quantified at Rs. 37,150.24 Lakh for FY 2022-23 (Paragraph 4.21.3.5 read with Table

29). This is the very finding under challenge as Ground (a) of the Appeal.

6. The grounds of the Appeal have been disclosed in the Reply. At Paragraph 2(a) of the Reply, WBSEDCL has itself stated that the first ground of challenge in the Appeal is the “*Computation of loss of Rs. 37,150.24 Lakh on account of sale of power to consumers in the multiple licensee areas at competitive tariff*”. WBSEDCL has therefore admitted, on its own pleading, that Ground (a) of the Appeal is a direct challenge to the very finding returned by WBERC upon DVC's objection. Every submission in the Reply to the effect that DVC has no concern with the subject matter of the Appeal, and that none of the issues raised in the Appeal relate to DVC (Reply, Paragraphs 5(b), 7 and 11), must be read against this admission.
7. It is also relevant that DVC is not a stranger even to the balance of the Impugned Order. DVC is a supplier of power to WBSEDCL, and the quantum and cost of power purchased by WBSEDCL from DVC forms part of the very APR under challenge, as recorded at Annexure 3A of the Impugned Order, as does the prior period adjustment admitted in favour of DVC at Table 9 thereof.
8. WBSEDCL neither impleaded DVC as a party to the Appeal nor served any notice of the Appeal upon DVC. DVC learnt of the pendency of the Appeal only from the Non-Confidential Response dated 16.01.2026 filed by WBSEDCL before the Competition Commission of India (CCI) in Case No. 13 of 2025, where WBSEDCL itself disclosed, at paragraph 140 read with footnote 29, that the Impugned Order is *sub judice* before this Hon'ble Tribunal.
9. These facts are not disputed in the Reply. What is disputed is only the legal characterisation of DVC's interest, and the legal consequence of

the time taken by DVC to approach this Hon'ble Tribunal. Both are addressed issue-wise below, with reference to the specific paragraphs of the Reply.

II. ISSUE-WISE REJOINDER TO THE REPLY

A. The nature and extent of DVC's interest in the Appeal

10. Before turning to the authorities relied upon in the Reply, it is necessary to state precisely the nature of the interest that DVC asserts. The Reply proceeds throughout upon the premise that DVC's interest is merely commercial or competitive, and therefore not a legal interest in the subject matter of the Appeal (Reply, Paragraphs 5(a), 8, 17 and 25). That premise is incorrect.
11. DVC and WBSEDCL supply electricity in a multiple licensee area. Such an area is a creature of statute, the sixth proviso to Section 14 of the Electricity Act, 2003 permitting more than one distribution licensee to operate in the same area of supply. Within such an area, the ceiling tariff determined under Section 62 of the Act, read with the third proviso to Regulation 2.2.2(xvi) of the Tariff Regulations, defines the terms upon which two licensees are permitted to coexist. DVC's entitlement to have a co-licensee held to those terms does not arise from contract, nor from any commercial expectation. It arises from the Act and from the Regulations, and it is a legal interest.
12. The finding under challenge in Ground (a) gives effect to that very provision. As matters presently stand, WBSEDCL may supply below the ceiling tariff, but must itself bear the resulting shortfall, and cannot pass it on to its other consumers. Should Ground (a) succeed, that constraint would stand removed, and WBSEDCL would be free to supply within the DVC command area at a price recovering no more

than its marginal cost of supply, while meeting the shortfall from its consumer base across the State of West Bengal, recorded in the Impugned Order at 2,18,92,443 consumers. DVC, whose distribution business is confined to the command area, has no comparable base over which any such shortfall may be spread. What is sought under Ground (a) is therefore not merely the deletion of a figure from WBSEDCL's Annual Performance Review, but a change in the terms upon which two licensees are permitted to operate in the same area of supply.

13. The consequence of such a change is not confined to DVC. The fixed costs of DVC's distribution business in the command area do not diminish when consumers migrate away from it. Those costs fall to be recovered, in DVC's own tariff determinations before WBERC, from a reduced volume of sales, with the result that the consumers who remain within the command area bear a higher tariff. The question raised by Ground (a) is therefore, at its heart, a question as to who ultimately bears the cost of supply below the ceiling tariff, and the answer to it affects the consumers of the command area no less than it affects DVC. To that extent, the interest which DVC seeks to defend is not distinct from, but coincides with, the consumer interest which Section 94(3) of the Act requires to be represented, and which WBSEDCL itself accepts to be a sufficient foundation for impleadment (Reply, Paragraph 15).
14. None of the above requires DVC to place any fresh material before this Hon'ble Tribunal. That DVC has lost consumers carrying substantial past dues, in consequence of WBSEDCL's notification dated 16.11.2019, is recorded in the Impugned Order itself at Paragraph 2.3. WBERC treated that objection as warranting enquiry, called for WBSEDCL's explanation by letter dated 21.03.2024, considered WBSEDCL's reply dated 20.05.2024, recorded its conclusion at

Paragraph 4.21.3.4 and quantified the consequence at Table 29. DVC asks to be heard upon that record, and upon nothing outside it.

15. It is in this light that WBSEDCL's submission, that no relief has been sought against DVC and that no part of the Impugned Order determines any right or obligation of DVC (Reply, Paragraphs 12 and 25), falls to be considered. The test of legal interest is one of effect, and not of the array of parties. A person is legally interested in a proceeding where the result of that proceeding will alter his legal position, whether or not any relief is claimed against him in terms. For the reasons set out above, the result of Ground (a) will alter the regulatory terms upon which DVC is required to operate in the command area, and will do so irrespective of the fact that no relief has been claimed against DVC.

B. DVC's locus, and whether it is a necessary or proper party

16. WBSEDCL, in Paragraphs 5(a) and 5(b) of Part I, and in Paragraphs 6 to 26 of Part II.A, of the Reply, has contended that DVC has no *locus standi* to seek impleadment, that DVC is neither a necessary party nor a proper party, and that DVC's interest is at best that of a rival licensee with a commercial or competitive interest, and not a legal interest in the subject matter of the Appeal. For this, WBSEDCL relies on the tests laid down in *Ramesh Hirachand Kundanmal v. Municipal Corporation of Greater Bombay*, (1992) 2 SCC 524 (Reply, Paragraph 9), and on the facts of that case and of *Shrinivas Kongovi v. Vijaya Kumari Shanmugam & Ors.*, 2017 SCC OnLine Kar 6902 (Reply, Paragraphs 18 to 22), to submit that DVC, like the parties in those two cases, has only a collateral or commercial interest and a different cause of action, and cannot insist on impleadment.
17. Before turning to the authorities, a concession in the Reply itself requires notice. At Paragraph 15 of the Reply, WBSEDCL accepts that

“the consumers of WBSEDCL, being affected by the Impugned Order, may seek impleadment in the present Appeal”. WBSEDCL therefore does not dispute, as a matter of principle, that a person who was not arrayed as a party to the Appeal may nevertheless be impleaded in it. The dispute is not whether a non-party objector may ever be impleaded, but only as to the category of objector entitled to be heard. It is also not without significance that WBSEDCL impleaded neither DVC nor any other objector who had appeared before WBERC.

18. In response to the above, it is first submitted that the facts of *Kundanmal* are very different from the facts of this case. In *Kundanmal*, HPCL had never been invited to, and had never taken part in, the municipal proceedings out of which the suit arose. It wanted to come in at a later stage to raise a fresh and separate issue of unauthorised construction, which had nothing to do with the case already being argued in that suit. That is why the Hon'ble Supreme Court refused to implead it.
19. The same is true of *Shrinivas Kongovi*. The petitioner there was a neighbour who had made a separate complaint of illegal construction, nuisance, and interference with light and air. The Karnataka High Court held this was a different and independent cause of action, unconnected with the appeal in which impleadment was sought.
20. DVC's position is not comparable to either HPCL or the petitioner in *Kongovi*. DVC did not appear for the first time at the appellate stage with a new grievance. DVC took part in the statutory public process under Section 64 of the Electricity Act, 2003, filed its objection within time, and that very objection was recorded and answered by WBERC in the Impugned Order. DVC is not raising a different or a new cause

of action. DVC only wants to be heard in defence of a finding that has already been passed on its own objection.

21. This is not a generalised finding that happens to touch DVC. WBERC called for a specific explanation from WBSEDCL about its billing methodology in the DVC command area (letter dated 21.03.2024), examined WBSEDCL's specific reply dated 20.05.2024 on that methodology, and then gave a specific finding and a specific figure (Paragraph 4.21.3.4 and Table 29) about that area. Ground (a) of the Appeal is therefore about WBSEDCL's conduct in the DVC command area, on which DVC alone has first-hand knowledge of the tariff, cost and consumer data that WBERC examined.
22. It is worth noting that even the test relied upon by WBSEDCL from *Kundanmal* (Reply, Paragraph 9(c)) supports DVC. That test asks whether the question in the case can be effectually and completely settled only if the applicant is made a party. Since the specific question in Ground (a) is whether WBSEDCL's conduct in the DVC command area caused a loss, that question cannot fairly be settled without hearing DVC.
23. WBSEDCL's answer to this is that any order passed in the Appeal will operate only *qua* WBSEDCL, and will neither determine any legal right of DVC nor impose any enforceable consequence upon it (Reply, Paragraphs 12 and 25). If that position is correct, DVC is content to be bound by it, and submits that this Hon'ble Tribunal may, in the alternative to impleadment, record WBSEDCL's statement that no finding rendered in the present Appeal upon Ground (a) shall be relied upon by WBSEDCL as against DVC in any other proceeding.
24. It is respectfully submitted that WBSEDCL cannot have it both ways. If the findings on Ground (a) truly carry no consequence for DVC,

WBSEDCL can have no difficulty in so stating. If, on the other hand, WBSEDCL intends to rely upon a reversal of those findings against DVC elsewhere, then on WBSEDCL's own test drawn from *Kundanmal*, DVC is directly and legally interested in the result of the Appeal and must be heard.

25. In any event, the necessary party or proper party test itself is a matter of discretion, to be exercised having regard to the facts of each case, and not a rigid formula. This was made clear by the Hon'ble Supreme Court in *Razia Begum v. Sahebzadi Anwar Begum*, AIR 1958 SC 886, which held that a person may be added as a party where this would allow the Court to more completely and effectually decide the questions in the case, even if that person does not strictly meet the necessary party test. On the facts here, where the very finding under appeal was passed on DVC's own objection in a process meant for stakeholder participation under Sections 64 and 94(3) of the Electricity Act, 2003, this discretion should be exercised in DVC's favour.
 26. It may also be noted that WBSEDCL itself relies, at Paragraph 16 of the Reply, on *Mohinder Singh Gill v. Chief Election Commissioner, New Delhi*, (1978) 1 SCC 405, for the point that a statutory order must be judged only on the reasons it actually records, and that those reasons cannot later be supplemented. If that is so, then the reasons WBERC recorded on Ground (a), being reasons that directly answer DVC's own objection, can only be properly tested by DVC. Neither WBERC, who wrote the finding, nor WBSEDCL, whose conduct was found fault with, is in a position to represent DVC's side of that finding.
- C. **Whether WBERC v. CESC Ltd. and Rama Shankar Awasthi are confined to consumers**

27. WBSEDCL, in Paragraphs 27 to 32 of the Reply, has contended that *West Bengal Electricity Regulatory Commission v. CESC Ltd.*, (2002) 8 SCC 715, and this Hon'ble Tribunal's judgment dated 05.08.2024 in Appeal No. 37 of 2018 and Batch (*Rama Shankar Awasthi v. Uttar Pradesh Power Corporation Ltd. & Ors.*), apply only to consumers and consumer associations, and do not help a rival distribution licensee such as DVC (Reply, Paragraphs 29 to 31 in particular).
28. In response, it is submitted that the reasoning in *WBERC v. CESC Ltd.* does not turn on the objector being a consumer. It turns on the process under Section 64, namely that the Commission invites objections by public notice, and on the ordinary principle of natural justice that an order cannot be reversed in appeal without hearing the very persons whose objections were invited, recorded, and answered by the Commission in that order.
29. DVC took part in exactly the same Section 64 process as any consumer-objector, under the same public notice dated 31.01.2024. WBERC did not treat DVC's objection any differently from a consumer's objection. It was received in the same window and answered with the same care, at Paragraphs 1.5, 2.1, 2.3 and 4.21.3 of the Impugned Order. WBSEDCL cannot now ask this Hon'ble Tribunal to draw, at the appeal stage, a distinction that WBERC itself never drew.
30. Section 94(3) of the Electricity Act, 2003 does not use the word consumer to shut out every other person who takes part in a Commission's proceedings under its own public notice. To read *WBERC v. CESC Ltd.* as allowing a licensee to treat a non-consumer objector as a lesser participant, whose objection may be answered by

the Commission but ignored on appeal, would undo the very principle the Hon'ble Supreme Court laid down.

31. Two further features of the statutory scheme are relevant. First, Section 64(2) of the Electricity Act, 2003 requires an application for determination of tariff to be published so that objections may be received, and Section 64(3) requires the Commission to pass its order after considering all suggestions and objections received. Neither provision confines participation to consumers, and the public notice dated 31.01.2024 was accordingly addressed to the public at large. Secondly, the third proviso to Regulation 2.2.2(xvi) of the Tariff Regulations, upon which Ground (a) turns, operates only in those areas of supply where multiple licensees exist. DVC is a licensee in precisely such an area. DVC is therefore not a stranger to the provision under consideration, but a member of the very class in whose context that provision operates.
32. This is not a matter of inference. The Hon'ble Supreme Court, at Paragraph 40 of *WBERC v. CESC Ltd.*, held in terms that where a company is the aggrieved party and prefers an appeal, “*it has to make such of those consumers who have been heard by the Commission, as party-respondent, and such consumers will have the right of audience before the appellate court,*” and that since none of the objectors heard by the Commission had been made parties to the appeal before it, “*the High Court ought to have impleaded and heard the appellant consumers herein.*” The same obligation applies to WBSEDCL and to DVC on the facts of the present case.
33. This Hon'ble Tribunal's judgment dated 05.08.2024 in Appeal No. 37 of 2018 and Batch applied this principle on facts that happened to involve consumers. That does not mean the principle itself belongs

only to consumers. The rule laid down in a judgment is not limited by the identity of the party before the Court in that case, and WBSEDCL's attempt to read the judgment that narrowly is not correct.

D. Whether the Application amounts to forum shopping

34. WBSEDCL, in Paragraphs 33 and 34 of the Reply (see also Paragraphs 5(d) and 5(g) of Part I), has contended that since DVC has already approached the CCI in Case No. 13 of 2025 alleging predatory pricing by WBSEDCL, DVC's attempt to also be impleaded in the present Appeal amounts to forum shopping and pursuing the same grievance in two forums at once.
35. In response, it is submitted that the CCI proceedings arise under a different statute, the Competition Act, 2002, and concern a different cause of action, namely alleged abuse of dominance and predatory pricing under Section 4 of that Act. The relief sought there, and the parties to that case, are also different. DVC's Application before this Hon'ble Tribunal seeks only to be heard on the correctness of the specific finding recorded in the Impugned Order on DVC's own objection under the Electricity Act, 2003. There is no overlap of cause of action or relief between the two proceedings, and the charge of forum shopping does not hold.
36. In any event, a plea of forum shopping presupposes that the same party has, of its own choice, pursued the same relief in two forums. DVC seeks no relief whatsoever in the present Appeal. DVC did not choose this forum; WBSEDCL did. DVC seeks only to be heard in defence of a finding already rendered in proceedings initiated by WBSEDCL itself. A party brought before a forum by its opponent's own appeal cannot be said to have gone forum shopping.

37. What is telling, however, is WBSEDCL's own conduct before the CCI. In its Non-Confidential Response dated 16.01.2026, WBSEDCL itself told the CCI that questions concerning the Tariff Regulations fall within WBERC's jurisdiction and that the Impugned Order is *sub judice* before this Hon'ble Tribunal. DVC has relied on this at Paragraph 26 of the Application, and it is not denied in the Reply. Having used the pendency of this Appeal to keep the CCI from deciding these questions, WBSEDCL cannot now tell this very Tribunal that DVC, on whose objection these findings were made, has no right to be heard here. A party cannot take one position to avoid one forum and the opposite position to avoid being heard in the very forum it pointed to. This is impermissible, as held in *R.N. Gosain v. Yashpal Dhir*, (1992) 4 SCC 683, where the Hon'ble Supreme Court held that a party cannot be permitted to blow hot and cold, or approbate and reprobate.
38. It is also relevant that WBSEDCL, in the same Response, relied upon the judgment of the Hon'ble Bombay High Court in *Star India Private Limited v. Competition Commission of India* and upon the judgment of the Hon'ble Supreme Court in *Competition Commission of India v. Bharti Airtel Limited*, to contend that the CCI ought not to enter upon questions pending before the sectoral regulator and this Hon'ble Tribunal. Having invoked the pendency of this Appeal to that end, WBSEDCL cannot resist the presence before this Hon'ble Tribunal of the very objector upon whose objection the finding under challenge was returned.

E. Whether the delay disentitles DVC

39. WBSEDCL, in Paragraphs 35 to 41 of the Reply, has contended that the Application is barred by delay, being 517 days from the filing of

the Appeal on 12.02.2025 and 179 days from the Non-Confidential Response dated 16.01.2026, that DVC could have protected itself by filing a caveat (Reply, Paragraph 37), and that this delay is by itself a sufficient ground to reject the Application, relying on *Vidur Impex and Traders Pvt. Ltd. v. Tosh Apartments Pvt. Ltd.*, (2012) 8 SCC 384 (Reply, Paragraph 40).

40. In response, it is first submitted that *Vidur Impex* does not say that delay by itself, without anything more, always requires an impleadment application to be rejected. That case concerned a transferee *pendente lite* in a property suit, and the Hon'ble Supreme Court held that such a transferee has no absolute right to be added as a party. The Court looked at several things together, including the applicant's conduct, any dishonest or hidden dealing, and how promptly the application was made. No allegation of dishonest or hidden conduct is made against DVC anywhere in the Reply. The only complaint is of time taken, which is just one of the several factors that case asks a Court to weigh.
41. It is further submitted that the standard for condoning delay should, in any event, be applied liberally and without a pedantic approach, as held by the Hon'ble Supreme Court in *Collector, Land Acquisition, Anantnag & Anr. v. Mst. Katiji & Ors.*, (1987) 2 SCC 107. There is no presumption that a delay is deliberate, and DVC claims the benefit of this same liberal standard.
42. It is also submitted that neither Section 120 of the Electricity Act, 2003 nor Rule 30 of the Appellate Tribunal for Electricity (Procedure, Form, Fee and Record of Proceedings) Rules, 2007 prescribes any period of limitation for an application seeking impleadment. The question before

this Hon'ble Tribunal is therefore one of discretion and of demonstrable prejudice, and not one of limitation.

43. The time taken by DVC between the Non-Confidential Response dated 16.01.2026 and the filing of the Application on 14.07.2026 was spent in obtaining and going through a complete copy of that Response, which was itself filed by WBSEDCL before the CCI in a substantially redacted form, in identifying the disclosure at paragraph 140 and footnote 29 concerning this Appeal, and in completing DVC's internal process, as a statutory corporation, for approving the engagement of counsel and the filing of the present proceedings. None of this shows any bad faith, and none of it caused any prejudice to WBSEDCL.
44. It is further submitted that a large part of this delay is because of WBSEDCL's own default. WBSEDCL has known, since at least the date of the Impugned Order on 09.12.2024, and certainly since it filed the Appeal on 12.02.2025, that Ground (a) of its own Appeal challenges a finding passed specifically on DVC's objection. Despite this, and despite what *WBERC v. CESC Ltd.* requires, WBSEDCL did not implead DVC and did not serve any notice of the Appeal on DVC. Had WBSEDCL done so, DVC would have known of the Appeal much earlier, and this dispute about delay would not have arisen at all. A party cannot rely on a delay that its own default has helped to create.
45. As to Paragraph 37 of the Reply, that DVC could have filed a caveat, it is submitted that a caveat is a step taken by a person who expects someone else to move an application against their interest, so that they get notice of it. It is not a substitute for WBSEDCL's own duty to implead or serve a party it already knew had objected before WBERC and whose objection formed the basis of Ground (a). WBSEDCL

cannot excuse its own failure to serve DVC by pointing to a step DVC could have taken but was not obliged to take.

46. Finally, it is submitted that delay by itself, without any prejudice being shown, is not a ground to refuse impleadment, especially at a stage when the Appeal has not yet been heard on merits. WBSEDCL has not shown, and cannot show, any prejudice from DVC's impleadment at this stage. On the other hand, DVC would suffer real and irreversible prejudice if a finding passed on its own objection is changed or set aside in an appeal where it was never heard.

F. The facts admitted by WBSEDCL are enough to entitle DVC to be heard

47. It bears mention that the Reply does not dispute that DVC's objections dated 20.02.2024 were filed in time and were recorded and answered in the Impugned Order, that the finding at Paragraph 4.21.3 read with Table 29 is the direct answer to DVC's objection, and that DVC was never served or impleaded despite this. These facts, taken with the law discussed above, are by themselves enough to entitle DVC to be heard in this Appeal.
48. Without prejudice to the above, DVC reiterates that it does not seek to enlarge the scope of the Appeal, nor to raise any issue unrelated to its own interest. DVC seeks to be heard upon Ground (a) alone, and is content, should this Hon'ble Tribunal so direct, to participate upon that ground alone and to file written submissions confined to it. Such limited participation would occasion no prejudice or delay to WBSEDCL, and would enable this Hon'ble Tribunal to decide Ground (a) after hearing the party upon whose objection the finding under challenge was returned.

49. In the premises, it is respectfully prayed that this Hon'ble Tribunal may be pleased to reject the objections raised in the Reply, allow the Application dated 14.07.2026 and implead DVC as a Respondent in the captioned Appeal, or in the alternative permit DVC to intervene and be heard on Ground (a) thereof, together with a direction to WBSEDCL to serve a complete copy of the Appeal paper-book upon DVC.
50. DVC craves leave to place such further facts, arguments and authorities before this Hon'ble Tribunal as may be required or directed.

FILED BY



SKV LAW OFFICES

Advocates for the Applicant

B-50, Defence Colony, New Delhi-110024

Phone: 011-47099999

Email: lawyers@skvlawoffices.com

Place: New Delhi

Date: 21.08.2026

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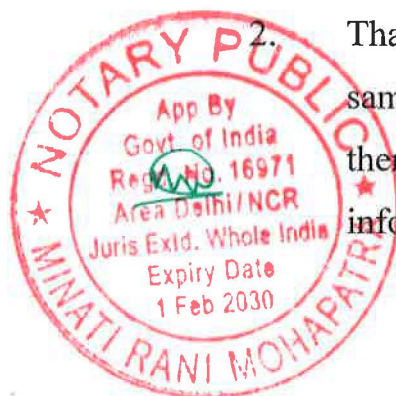
Damodar Valley Corporation

...Applicant

AFFIDAVIT

I, Pravin Kumar Singh, son of Late Murali Prasad Singh, aged about 46 years, working as Deputy General Manager (Electrical), Damodar Valley Corporation, having office at Hall No. 3, 3rd Floor, 15 NBCC Towers, Bhikaji Cama Place, New Delhi-110066, do hereby solemnly affirm and state as follows:

1. That I am the Authorised Representative of Damodar Valley Corporation, the Applicant in the above-mentioned matter, and am duly authorised and competent to sign, verify and swear this affidavit on behalf of the Applicant. I am fully conversant with the facts and circumstances of the case and am competent to depose thereto.
2. That I have read the accompanying Rejoinder and I say that the same has been drafted under my instructions and that the contents therein are true and correct to the best of my knowledge and information derived from the official records of the Applicant.



That the facts stated above are true and correct to the best of my knowledge and belief. No part of the same is false and nothing material has been concealed therefrom.



[Signature]
DEPONENT

VERIFICATION

I, the deponent above named do hereby verify that the contents of this affidavit are true and correct to the best of my knowledge and belief, no part of it is false and nothing material has been concealed therefrom.

Verified at New Delhi, on this 21ST day of August, 2026.

21 AUG 2026

[Signature]
D/8705/2021
IDENTIFIED



[Signature]
DEPONENT



[Signature]
MINATI RANI MOHAPATRA
ADVOCATE (NOTARY)
Mob. No.: 8130128457

ATTESTED
[Signature]
MINATI RANI MOHAPATRA
NOTARY DELHI-R-16971
GOVERNMENT OF INDIA
SUPREME COURT OF INDIA
COMPOUND NEW DELHI
REGISTER Pg./Sl. No. *[Signature]*

21 AUG 2026